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Executive Order

REJECTING THE BID OF JOHN C. LINCOLN FOR CERTAIN SHARES OF THE CAPITAL STOCK AND OTHER PROPERTY OF ATLANTIC WELDING CORPORATION, A NEW YORK CORPORATION, OFFERED FOR SALE AT PUBLIC AUCTION ON AUGUST 13, 1919, PURSUANT TO THE "TRADING WITH THE ENEMY ACT" AND AMENDMENTS THEREOF.

By virtue of the authority vested in me by "An act to define, regulate and punish trading with the enemy, and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, and all other powers and authorities me hereto enabling, I do hereby make the following determination and order:

WHEREAS, the Alien Property Custodian offered for sale at auction in the City of New York, State of New York, at 11:00 o'clock A. M. on the 13th day of August, 1919, certain shares of the capital stock and other property of Atlantic Welding Corporation, a New York corporation, said shares being described as follows:

Item I. All right, title and interest in and to these certain letters patent of the United States identified as follows:

Patent No.	Date of Issue	Title
R-14,137*	May 23, 1916	Welded Rail Joints.
1,070,444	August 19, 1913	Rail Joints.
1,070,445	August 19, 1913	Rail Joints.
1,196,544	August 29, 1916	Method of Coating Metal with Metal.

*Reissue of patent 930,096, dated August 3, 1909.

and every right, title and interest with respect thereto, including all damages and profits recoverable at law or in equity from any person, firm, corporation, or government for past infringement thereof, subject to the rights, if any, of Atlantic Welding Corporation and Lincoln Rail Welding Co.

Item II. 907 shares of the preferred capital stock of Atlantic Welding Corporation, a corporation of the State of New York, of the par value of $100 each, being all the capital stock of said corporation outstanding.

Item III. The right, if any, formerly enuring to the benefit of Accumulatoren Fabrik Aktiengesellschaft to have issued $250,000 par value of the common capital stock of the Atlantic Welding Corporation.

Item IV. All right, title and interest in and to those certain letters patent of the United States identified as follows:

Patent No.	Date of Issue	Title
R-14,245*	January 9, 1917	Process and Apparatus for making Brazed Joints.

*Reissue of patent 1,169,484, dated Jan. 25, 1916.

and every right, title and interest with respect thereto, including all damages and profits recoverable at law or in equity from any person, firm, corporation, or government for past infringement thereof, subject to the rights, if any, of Atlantic Welding Corporation and Lincoln Rail Welding Co.

Item V. All right, title and interest in and to those certain letters patent of the United States identified as follows:

Patent No.	Date of Issue	Title
1,132,052	March 16, 1915	Method of making welded rail joints.

and every right, title and interest with respect thereto, including all damages and profits recoverable at law or in equity from any person, firm, corporation, or government for past infringement thereof, subject to the rights, if any, of Atlantic Welding Corporation and Lincoln Welding Co.

Item VI. All right, title and interest in and to those certain letters patent of the United States identified as follows:

Patent No.	Date of Issue	Title
799,934	September 19, 1905	Process for electrically welding rail joints.
804,763	November 14, 1905	Process of electrically welding rails.

and every right, title and interest with respect thereto, including all damages and profits recoverable at law or in equity from any person, firm, corporation, or government for past infringement thereof, subject to the rights, if any, of Atlantic Welding Corporation and Lincoln Rail Welding Co.

Item VII. All right, title and interest in and to those certain letters patent of the United States identified as follows:

Patent No.	Date of Issue	Title
934,884	September 21, 1909	Rail and manufacture thereof.
1,010,411	December 5, 1911	Method of making welded rail joints.

and every right, title and interest with respect thereto, including all damages and profits recoverable at law or in equity from any person, firm, corporation, or government for past infringement thereof, subject to the rights, if any of Atlantic Welding Corporation and Lincoln Rail Welding Co.

Item VIII. All that certain obligation and indebtedness appearing upon the books and records of Atlantic Welding Corporation as of November 13, 1918, in the name of and to the credit of Accumulatoren Fabrik Aktiengesellschaft in the amount of $16,703.65, together with any accretions thereto and any interest accrued on the said obligation and indebtedness and on the accretions thereto together with that certain right of the said Accumulatoren Fabrik Aktiengesellschaft to have issued at its option $16,703.65 in value of the preferred capital stock of the Atlantic Welding Corporation as payment of the indebtedness hereinbefore described.

AND WHEREAS, the highest bid received for said stock was $10,000, being $8,400 for Items I, II, III and VIII; $1,000 for Item IV; $200 for Item V; $200 for Item VI; and $200 for Item VII, which bid was made by John C. Lincoln.

The Alien Property Custodian is hereby authorized and shall have the right to reject all bids made at said sale, including the bid of the said John C. Lincoln, and to resell such property at public sale.

My reason for the foregoing determination and order is that the above stated price bid for the said property is inadequate and not the fair value thereof.

Done in the District of Columbia this 30th day of August, in the year of our Lord one thousand nine hundred and nineteen, and in the year of the independence of the United States, the one hundred forty-fourth.

WOODROW WILSON

[No. 3163.]